

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Officer, February 5, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS Number 2022-25455 against Sergeant Ray Soriano, Tax Registry Number 956275. This case was conferenced on January 25, 2024, before Assistant Deputy Commissioner-Trials Jeffrey Adler, who approved the dismissal of the charges in return for a negotiated penalty of a Command Discipline. ADCT Jeff Adler agreed that the penalty should be a Command Discipline, but he disagreed with the forfeiture of TEN (10) vacation and believed that the penalty should be the forfeiture of FIVE (5) vacation days.

CCRB respectfully disagrees with ADCT Jeff Adler. CCRB maintains that the recommended penalty should be a Command Discipline Schedule B with the forfeiture of TEN (10) vacation days. The Charges and Specifications will be dismissed for plea purposes

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25455
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, SORIANO	FIRST RAY	M.I.	COMMAND 043 PRECINCT
SHIELD NO. 701	TAX REGISTRY NO. 956275	SOCIAL SECURITY NO.	DATE APPOINTED 01/08/2014	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Ray SORIANO, on or about June 2, 2020, at approximately 2020, while assigned to 042 PCTand on duty, in the vicinity of West Street between Morris Street and Carlisle Street, New York County, wrongfully used force, in that he struck § 87(2)(b) with a baton, twice, about the body without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brucio
FIRST DEPUTY COMMISSIONER

3/12/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

4/10/24
DATE

THIRD ENDORSEMENT

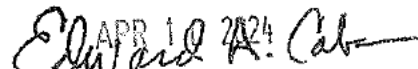
First Deputy Commissioner to Police Commissioner March 12, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-25455 against Sergeant Ray Soriano, Tax No. 956275, with the recommendation that the Charges and Specifications against Sergeant Soriano be dismissed and that Sergeant Soriano receive a Schedule "B" Command Discipline and forfeit ten (10) vacation days; I concur. **RECOMMEND APPROVAL.**

TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED


APR 10 2024
EDWARD A. CABAN
POLICE COMMISSIONER